

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-19

Served: May 29, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER GRANTING RESPONDENT’S MOTION TO ENLARGE TIME

On May 8, 2024, the Commission issued a Notice of Filing of Complaint and Assignment (“Notice”) for this proceeding. The response to the complaint would be due on June 3, 2024.

On May 28, 2024, Flexport International LLC (“Respondent”) filed a Consent Motion for Enlargement of Time (“EOT Motion”), seeking leave to enlarge the time to respond to the Complaint by two weeks to June 17, 2024. As good cause for the extension of time, Respondent states that its lead counsel was out of the country for the last two weeks, and counsel “had numerous scheduling conflicts...including the Memorial Day holiday.” EOT Motion at 1. While not specifically stated, the Memorial Day holiday is apparently also the reason that Respondent did not file the EOT Motion at least seven (7) days prior to the due date of the answer, as set forth 46 C.F.R. § 502.102. Respondent states that it conferred with Peloton Interactive, Inc. (“Complainant”) regarding the EOT Motion, and Complainant consents to it.

This proceeding is at an early stage and a two-week extension of the time to respond to the Complaint will not significantly delay the case. Accordingly, good cause is found, and Respondent’s EOT Motion is **GRANTED**. Respondent must file a response to the complaint by June 17, 2024.

The parties are encouraged to review the Initial Order and the Commission’s Rules and Regulations for further guidance in terms of filing motions.



Linda S. Harris Crovella
Administrative Law Judge